



January 15, 2026

HOUSE BILL No. 1230

DIGEST OF HB 1230 (Updated January 14, 2026 4:09 pm - DI 141)

Citations Affected: IC 4-21.5; IC 25-0.5; IC 25-1; IC 25-2.1; IC 25-4; IC 25-6.1; IC 25-8; IC 25-15; IC 25-20; IC 25-20.2; IC 25-21.5; IC 25-21.8; IC 25-23.7; IC 25-28.5; IC 25-30; IC 25-31; IC 25-34.1; IC 25-34.5.

Synopsis: Professional licensing agency. Provides that a state agency must determine if an alleged violator has substantially corrected the violation and notify an alleged violator whether the alleged violator is in substantial compliance with a state rule or state statute not more than 90 days after certain occurrences (current law provides for 30 days). Adds certification language for purposes of renewals. Allows certain boards to assess different fines for individuals and businesses for purposes of disciplinary sanctions. Makes various changes to the following boards: (1) The state board of cosmetology and barber examiners. (2) The committee of hearing aid dealer examiners. (3) The respiratory care committee. Provides that certain persons may not own an interest in an appraisal management company. Repeals the Indiana Code chapter relating to the professional licensing agency's duties and merges the agency's duties in another existing Indiana Code chapter.

Effective: July 1, 2026.

Miller D

January 5, 2026, read first time and referred to Committee on Employment, Labor and Pensions.

January 15, 2026, amended, reported — Do Pass.

HB 1230—LS 6547/DI 148



January 15, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1230

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 4-21.5-2.5-9, AS ADDED BY P.L.215-2017,
- 2 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 3 JULY 1, 2026]: Sec. 9. The agency shall determine if the alleged
- 4 violator has substantially corrected the violation and notify the alleged
- 5 violator whether the alleged violator is in substantial compliance with
- 6 the applicable rule or state statute not more than ~~thirty (30)~~ **ninety (90)**
- 7 days after the earlier of the date that:
- 8 (1) the alleged violation must be corrected under the corrective
- 9 plan; or
- 10 (2) the alleged violator notifies the agency that the alleged
- 11 violator has corrected the violation.
- 12 SECTION 2. IC 25-0.5-7-1, AS ADDED BY P.L.3-2014, SECTION
- 13 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1,
- 14 2026]: Sec. 1. This chapter sets forth the entities for which the Indiana
- 15 professional licensing agency performs administrative functions,
- 16 duties, and responsibilities under ~~IC 25-1-6-3(a)~~ **IC 25-1-5-3**.
- 17 SECTION 3. IC 25-0.5-7-2, AS ADDED BY P.L.3-2014, SECTION

HB 1230—LS 6547/DI 148



5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana board of accountancy (IC 25-2.1-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 4. IC 25-0.5-7-3, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the board of registration for architects and landscape architects (IC 25-4-1-2) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 5. IC 25-0.5-7-4, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana auctioneer commission (IC 25-6.1-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 6. IC 25-0.5-7-5, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of cosmetology and barber examiners (IC 25-8-3-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 7. IC 25-0.5-7-6, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of funeral and cemetery service (IC 25-15-9) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 8. IC 25-0.5-7-7, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of registration for professional engineers (IC 25-31-1-3) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 9. IC 25-0.5-7-8, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana plumbing commission (IC 25-28.5-1-3) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 10. IC 25-0.5-7-9, AS ADDED BY P.L.3-2014,



SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the Indiana real estate commission (IC 25-34.1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 11. IC 25-0.5-7-10, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the real estate appraiser licensure and certification board (IC 25-34.1-8-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 12. IC 25-0.5-7-11, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the private investigator and security guard licensing board (IC 25-30-1-5.2) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 13. IC 25-0.5-7-12, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of registration for professional surveyors (IC 25-21.5-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 14. IC 25-0.5-7-13, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the manufactured home installer licensing board (IC 25-23.7) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 15. IC 25-0.5-7-14, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the home inspectors licensing board (IC 25-20.2-3-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 16. IC 25-0.5-7-15, AS ADDED BY P.L.3-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. The Indiana professional licensing agency shall perform administrative functions, duties, and responsibilities for the state board of massage therapy (IC 25-21.8-2-1) under ~~IC 25-1-6-3(a)~~. **IC 25-1-5-3.**

SECTION 17. IC 25-1-5-1, AS AMENDED BY P.L.206-2005,



SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The centralization of staff, functions, and services contemplated by this chapter shall be done in such a way as to enhance the Indiana professional licensing agency's ability to:

- (1) make maximum use of data processing as a means of more efficient operation; ~~and~~
- (2) provide more services and carry out functions of superior quality; **and**
- (3) significantly reduce the number of staff needed to provide services and carry out the agency's functions.**

SECTION 18. IC 25-1-5-2, AS AMENDED BY P.L.3-2014, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The following terms are defined for this chapter:

- (1) "Agency" means the Indiana professional licensing agency established by section 3 of this chapter.
- (2) "Board" means any agency, board, advisory committee, or group described in IC 25-0.5-5 **or IC 25-0.5-7.**

SECTION 19. IC 25-1-5-3, AS AMENDED BY P.L.3-2014, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) There is established the Indiana professional licensing agency. The agency shall perform all administrative functions, duties, and responsibilities assigned by law or rule to the executive director, secretary, or other statutory administrator of the entities described in IC 25-0.5-5 **or IC 25-0.5-7.**

(b) Nothing in this chapter may be construed to give the agency policy making authority, which authority remains with each board.

SECTION 20. IC 25-1-5-4, AS AMENDED BY P.L.249-2023, SECTION 79, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The agency shall employ necessary staff, including specialists and professionals, to carry out the administrative duties and functions of the boards, including but not limited to:

- (1) notice of board meetings and other communication services;
- (2) recordkeeping of board meetings, proceedings, and actions;
- (3) recordkeeping of all persons licensed, regulated, or certified by a board;
- (4) administration of examinations; and
- (5) administration of license or certificate issuance or renewal.

(b) In addition, the agency:

- (1) shall prepare a consolidated statement of the budget requests of all the boards described in IC 25-0.5-5 **or IC 25-0.5-7;**
- (2) may coordinate licensing or certification renewal cycles,



1 examination schedules, or other routine activities to efficiently
2 utilize agency staff, facilities, and transportation resources, and to
3 improve accessibility of board functions to the public;

4 (3) may consolidate, where feasible, office space, recordkeeping,
5 and data processing services;

6 (4) shall operate and maintain the electronic registry of
7 professions established under IC 25-1-5.5;

8 (5) shall post each board's public meeting agenda on the
9 applicable board's website not less than seventy-two (72) hours
10 before a board's public meeting;

11 (6) shall post each board's public meeting minutes on the
12 applicable board's website not more than fourteen (14) calendar
13 days after adoption of the minutes by the board;

14 (7) shall post any vacancy on a board on the applicable board's
15 website within fourteen (14) calendar days of the vacancy;

16 (8) notwithstanding any other law:

17 (A) shall prescribe the application form and manner for each
18 board; and

19 (B) shall make any new application form publicly available on
20 the applicable board's website for sixty (60) calendar days
21 before being adopted by the agency; and

22 (9) shall send notification of incomplete items in an application
23 to the applicant every fourteen (14) calendar days after the
24 applicant initiates the application until the earlier of the
25 following:

26 (A) The date the application is completed.

27 (B) One (1) calendar year after the applicant initiates the
28 application.

29 (c) In administering the renewal of licenses or certificates under this
30 chapter, the agency shall send a notice of the upcoming expiration of
31 a license or certificate to each holder of a license or certificate at least
32 ninety (90) days before the expiration of the license or certificate. The
33 notice must inform the holder of the license or certificate of the need
34 to renew **the license or certificate** and the requirement of payment of
35 the renewal fee. If this notice of expiration is not sent by the agency,
36 the holder of the license or certificate is not subject to a sanction for
37 failure to renew if, once notice is received from the agency, the license
38 or certificate is renewed within forty-five (45) days after receipt of the
39 notice.

40 (d) In administering an examination for licensure or certification,
41 the agency shall make the appropriate application forms available at
42 least thirty (30) days before the deadline for submitting an application



to all persons wishing to take the examination.

(e) The agency may require an applicant for license **or certificate** renewal to submit evidence proving that:

(1) the applicant continues to meet the minimum requirements for licensure **or certification**; and

(2) the applicant is not in violation of:

(A) the statute regulating the applicant's profession; or

(B) rules adopted by the board regulating the applicant's profession.

(f) The agency shall process an application for renewal of a license or certificate:

(1) not later than ten (10) days after the agency receives all required forms and evidence; or

(2) within twenty-four (24) hours after the time that an applicant for renewal appears in person at the agency with all required forms and evidence.

This subsection does not require the agency to issue a renewal license or certificate to an applicant if subsection (g) applies.

(g) The agency may delay issuing a license **or certificate** renewal for up to one hundred twenty (120) days after the renewal date for the purpose of permitting the board to investigate information received by the agency that the applicant for renewal may have committed an act for which the applicant may be disciplined. If the agency delays issuing a license **or certificate** renewal, the agency shall notify the applicant that the applicant is being investigated. Except as provided in subsection (h), before the end of the one hundred twenty (120) day period, the board shall do one (1) of the following:

(1) Deny the license **or certificate** renewal following a personal appearance by the applicant before the board.

(2) Issue the license **or certificate** renewal upon satisfaction of all other conditions for renewal.

(3) Issue the license **or certificate** renewal and file a complaint under IC 25-1-7.

(4) Upon agreement of the applicant and the board and following a personal appearance by the applicant before the board, renew the license **or certificate** and place the applicant on probation status under IC 25-1-9-9.

(h) If an individual fails to appear before the board under subsection (g), the board may take action on the applicant's license **or certificate** allowed under subsection (g)(1), (g)(2), or (g)(3).

(i) The applicant's license **or certificate** remains valid until the final determination of the board is rendered unless the renewal is denied or



the license is summarily suspended under IC 25-1-9-10.

(j) The license **or certificate** of the applicant for a license **or certificate** renewal remains valid during the one hundred twenty (120) day period unless the license **or certificate** renewal is denied following a personal appearance by the applicant before the board before the end of the one hundred twenty (120) day period. If the one hundred twenty (120) day period expires without action by the board, the license ~~shall be~~ **or certificate is** automatically renewed at the end of the one hundred twenty (120) day period.

(k) The board's renewal of a license **or certificate** does not preclude the board from imposing sanctions on the licensee **or certificate holder** as a result of a complaint filed by the attorney general after renewal of the license **or certificate**.

(l) Notwithstanding any other statute **or rule**, the agency may stagger license or certificate renewal cycles. However, if a renewal cycle for a specific board or committee is changed, the agency must obtain the approval of the affected board or committee.

(m) An application for a license, certificate, registration, or permit is abandoned without an action of the board, if the applicant does not complete the requirements to complete the application within one (1) year after the date on which the application was filed. However, the board may, for good cause shown, extend the validity of the application for additional thirty (30) day periods. An application submitted after the abandonment of an application is considered a new application.

SECTION 21. IC 25-1-5-4.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.7. A person who has a license or certificate renewal denied by a board described in IC 25-0.5-7 may file an appeal of the denial under IC 4-21.5-3.**

SECTION 22. IC 25-1-5-5, AS AMENDED BY P.L.3-2014, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 5. (a) The agency shall be administered by an executive director appointed by the governor who shall serve at the will and pleasure of the governor.**

(b) The executive director must be qualified by experience and training.

(c) The term "executive director" or "secretary", or any other statutory term for the administrative officer of a board described in IC 25-0.5-5 **or IC 25-0.5-7**, means the executive director of the agency or the executive director's designee.

(d) The executive director is the chief fiscal officer of the agency and is responsible for hiring of all staff, and for procurement of all



1 services and supplies in accordance with IC 5-22. The executive
 2 director may appoint not more than three (3) deputy directors, who
 3 must be qualified to work for the boards which are served by the
 4 agency.

5 (e) The executive director shall execute a bond payable to the state,
 6 with surety to consist of a surety or guaranty corporation qualified to do
 7 business in Indiana, in an amount fixed by the state board of accounts,
 8 conditioned upon the faithful performance of duties and the accounting
 9 for all money and property that come into the executive director's hands
 10 or under the executive director's control. The executive director may
 11 likewise cause any employee of the agency to execute a bond if that
 12 employee receives, disburses, or in any way handles funds or property
 13 of the agency. The costs of any such bonds shall be paid from funds
 14 available to the agency.

15 (f) The executive director may present to the general assembly
 16 legislative recommendations regarding operations of the agency and
 17 the boards it serves, including adoption of four (4) year license or
 18 certificate renewal cycles wherever feasible.

19 (g) The executive director may execute orders, subpoenas,
 20 continuances, and other legal documents on behalf of a board or
 21 committee when requested to do so by the board or committee.

22 (h) The executive director or the executive director's designee may,
 23 upon request of a board or committee, provide advice and technical
 24 assistance on issues that may be presented to the boards or committees.

25 SECTION 23. IC 25-1-5-11, AS AMENDED BY P.L.143-2025,
 26 SECTION 42, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 27 JULY 1, 2026]: Sec. 11. (a) As used in this section, "applicant" means
 28 an individual who applies for a license, certificate, registration, or
 29 permit issued by a board under this title.

30 (b) As used in this section, "licensee" means an individual who is or
 31 has been licensed, certified, or registered by a board under this title.

32 (c) As used in this section, "personal information" means the
 33 following:

34 (1) Home telephone number.

35 (2) Electronic mail address.

36 **(3) Mailing address.**

37 (d) Except as otherwise provided in this section, the personal
 38 information of an individual who is:

39 (1) a licensee;

40 (2) an applicant; or

41 (3) a board member;

42 is confidential for purposes of IC 5-14-3-4 and may not be disclosed to



1 the public by the agency or a board.

2 (e) Except as provided in IC 25-23-1-12.6, an applicant or a licensee
3 shall provide the applicant's or licensee's Social Security number to the
4 agency.

5 (f) The agency and the boards shall collect and release the
6 applicant's or licensee's Social Security number as provided in state or
7 federal law.

8 (g) Notwithstanding IC 4-1-10-3, the agency and the boards may
9 allow access to the Social Security number of each applicant or
10 licensee to:

11 (1) a testing service that provides the examination for licensure,
12 certification, or registration to the agency or the boards; or

13 (2) an individual state regulatory board or an organization
14 composed of state regulatory boards for the applicant's or
15 licensee's profession for the purpose of coordinating:

16 (A) licensure, certification, or registration; and

17 (B) disciplinary activities among the individual states.

18 (h) Notwithstanding subsection (d), the agency or a board may
19 disclose personal information of an individual described in subsection
20 (d) if the person requesting the information provides proof of identity
21 and represents that the use of the personal information will be strictly
22 limited to at least one (1) of the following:

23 (1) For use by a government agency, including a court or law
24 enforcement agency, in carrying out its functions, or a person
25 acting on behalf of a government agency in carrying out its
26 functions.

27 (2) For use in connection with a civil, a criminal, an
28 administrative, or an arbitration proceeding in a court or
29 government agency or before a self-regulatory body, including the
30 service of process, investigation in anticipation of litigation, and
31 the execution or enforcement of judgments and orders, or under
32 an order of a court.

33 (3) For use in research activities, and for use in producing
34 statistical reports, as long as the personal information is not
35 published, re-disclosed, or used to contact the individuals who are
36 the subject of the personal information.

37 (4) For use by any person, when the person demonstrates, in a
38 form and manner prescribed by the agency, that written consent
39 has been obtained from the individual who is the subject of the
40 information.

41 (5) For any other use specifically authorized by law that is related
42 to the agency or a board or to public safety.



SECTION 24. IC 25-1-5-12 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 12. (a) The agency and the boards shall allow the department of state revenue, the alcohol and tobacco commission, and the bureau of motor vehicles access to the name of each person who:**

- (1) is licensed under this article; or
- (2) has applied for a license under this article.

(b) If the department of state revenue notifies the agency that a person is on the most recent tax warrant list, the agency shall not issue or renew the person's license until:

- (1) the person provides to the agency a statement from the department of state revenue indicating that the person's tax warrant has been satisfied; or
- (2) the agency receives a notice from the commissioner of the department of state revenue under IC 6-8.1-8-2(k).

(c) If the alcohol and tobacco commission notifies the agency that a person has an outstanding balance due to the alcohol and tobacco commission, the agency shall not issue or renew the person's license until the person provides to the agency a statement from the alcohol and tobacco commission indicating that the person's outstanding balance has been satisfied.

(d) If the bureau of motor vehicles notifies the agency that a person has an outstanding balance due to the bureau of motor vehicles because a check, draft, or order issued or delivered by the person to the bureau of motor vehicles was returned or dishonored because of insufficient funds, the agency shall not issue or renew the person's license until the person provides to the agency a statement from the bureau of motor vehicles indicating that the person's outstanding balance has been satisfied.

SECTION 25. IC 25-1-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Professional Licensing Agency Functions and Duties).

SECTION 26. IC 25-1-9-9 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 9. (a) The board may impose any of the following sanctions, singly or in combination, if it finds that a practitioner is subject to disciplinary sanctions under section 4, 5, 6, 6.7, or 6.9 of this chapter or IC 25-1-5-4:**

- (1) Permanently revoke a practitioner's license.
- (2) Suspend a practitioner's license.
- (3) Censure a practitioner.
- (4) Issue a letter of reprimand.
- (5) Place a practitioner on probation status and require the



practitioner to:

(A) report regularly to the board upon the matters that are the basis of probation;

(B) limit practice to those areas prescribed by the board;

(C) continue or renew professional education under a preceptor, or as otherwise directed or approved by the board, until a satisfactory degree of skill has been attained in those areas that are the basis of the probation; or

(D) perform or refrain from performing any acts, including community restitution or service without compensation, that the board considers appropriate to the public interest or to the rehabilitation or treatment of the practitioner.

(6) Assess a fine **as follows against the practitioner in an amount not to exceed one thousand dollars (\$1,000)** for each violation listed in section 4 of this chapter, except for a finding of incompetency due to a physical or mental disability:

(A) For an individual practitioner, in an amount not to exceed one thousand dollars (\$1,000) per violation.

(B) For a business entity, in an amount not to exceed five thousand dollars (\$5,000) per violation.

When imposing a fine, the board shall consider a practitioner's ability to pay the amount assessed. If the practitioner fails to pay the fine within the time specified by the board, the board may suspend the practitioner's license without additional proceedings. However, a suspension may not be imposed if the sole basis for the suspension is the practitioner's inability to pay a fine.

(b) The board may withdraw or modify the probation under subsection (a)(5) if it finds, after a hearing, that the deficiency that required disciplinary action has been remedied, or that changed circumstances warrant a modification of the order.

SECTION 27. IC 25-1-11-12, AS AMENDED BY P.L.83-2024, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) The board may impose any of the following sanctions, singly or in combination, if the board finds that a practitioner is subject to disciplinary sanctions under sections 5 through 9 of this chapter:

(1) Permanently revoke a practitioner's license.

(2) Suspend a practitioner's license.

(3) Censure a practitioner.

(4) Issue a letter of reprimand.

(5) Place a practitioner on probation status and require the practitioner to:



- 1 (A) report regularly to the board upon the matters that are the
- 2 basis of probation;
- 3 (B) limit practice to those areas prescribed by the board;
- 4 (C) continue or renew professional education approved by the
- 5 board until a satisfactory degree of skill has been attained in
- 6 those areas that are the basis of the probation;
- 7 (D) perform or refrain from performing any acts, including
- 8 community restitution or service without compensation, that
- 9 the board considers appropriate to the public interest or to the
- 10 rehabilitation or treatment of the practitioner; or
- 11 (E) satisfactorily complete a peer review specified by the
- 12 board as a condition for termination of probationary status if
- 13 the practitioner is a licensee (as defined in IC 25-2.1-1-8).
- 14 (6) Assess a civil penalty **as follows against the practitioner for**
- 15 **not more than one thousand dollars (\$1,000)** for each violation
- 16 listed in sections 5 through 9 of this chapter except for a finding
- 17 of incompetency due to a physical or mental disability:
- 18 (A) **For an individual practitioner, in an amount not to**
- 19 **exceed one thousand dollars (\$1,000) per violation.**
- 20 (B) **For a business entity, in an amount not to exceed five**
- 21 **thousand dollars (\$5,000) per violation.**
- 22 (7) Order a practitioner to pay consumer restitution to a person
- 23 who suffered damages as a result of the conduct or omission that
- 24 was the basis for the disciplinary sanctions under this chapter.
- 25 (b) When imposing a civil penalty under subsection (a)(6), the board
- 26 shall consider a practitioner's ability to pay the amount assessed. If the
- 27 practitioner fails to pay the civil penalty within the time specified by
- 28 the board, the board may suspend the practitioner's license without
- 29 additional proceedings. However, a suspension may not be imposed if
- 30 the sole basis for the suspension is the practitioner's inability to pay a
- 31 civil penalty.
- 32 (c) The board may withdraw or modify the probation under
- 33 subsection (a)(5) if the board finds after a hearing that the deficiency
- 34 that required disciplinary action has been remedied or that changed
- 35 circumstances warrant a modification of the order.
- 36 SECTION 28. IC 25-2.1-4-2, AS AMENDED BY P.L.177-2015,
- 37 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 38 JULY 1, 2026]: Sec. 2. (a) Subject to IC 25-1-2-6(e), an initial and
- 39 renewed certificate expires on the date established by the licensing
- 40 agency under ~~IC 25-1-6-4~~. **IC 25-1-5-4.**
- 41 (b) An individual may renew a certificate by paying a renewal fee
- 42 and complying with the continuing education requirements established



1 under section 5 of this chapter on or before the expiration date of the
2 certificate.

3 (c) If an individual fails to pay a renewal fee on or before the
4 expiration date of a certificate, the certificate becomes invalid without
5 further action by the board.

6 (d) If an individual holds a certificate that has been invalid for not
7 more than three (3) years, the board shall reinstate the certificate if the
8 individual meets the requirements of IC 25-1-8-6(c).

9 (e) If more than three (3) years have elapsed since the date a
10 certificate expired, the individual who holds the certificate may seek
11 reinstatement of the certificate by satisfying the requirements for
12 reinstatement under IC 25-1-8-6(d).

13 SECTION 29. IC 25-2.1-9-3, AS AMENDED BY P.L.197-2011,
14 SECTION 82, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
15 JULY 1, 2026]: Sec. 3. (a) If the board has reason to believe that the
16 subject of an investigation has committed a violation of this article or
17 IC 25-1-11:

18 (1) the board shall direct that a complaint be issued under
19 IC 25-1-7, if the subject of the investigation is a licensee; and

20 (2) the board shall take appropriate action under IC 25-1-7-14, if
21 the subject of the investigation is not a licensee.

22 (b) Subsection (a) does not prohibit the board from taking an action
23 permitted under IC 25-1 or IC 25-2.1-8-2, including an action under the
24 following:

25 (1) IC 25-1-4-5 (conditional license and other actions related to
26 continuing education or lapsed license).

27 (2) ~~IC 25-1-6-4~~ **IC 25-1-5-4** (refusal to issue a license or
28 placement on probationary status).

29 (c) If the board does not proceed under subsection (a) or (b), the
30 board shall close the matter and may release the information only with
31 the consent of the individual or firm that was under investigation.

32 SECTION 30. IC 25-4-1-14, AS AMENDED BY P.L.177-2015,
33 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
34 JULY 1, 2026]: Sec. 14. (a) Subject to IC 25-1-2-6(e), every registered
35 architect who continues in active practice shall, biennially, on or before
36 the date established by the licensing agency under ~~IC 25-1-6-4~~,
37 **IC 25-1-5-4**, renew the registered architect's certificate of registration
38 and pay the required renewal fee.

39 (b) An architect registered or licensed in Indiana who has failed to
40 renew the architect's certificate of registration for a period of not more
41 than five (5) years may have the certificate of registration reinstated by
42 meeting the requirements of IC 25-1-8-6(c).



(c) An architect registered in Indiana who has failed to renew the architect's certificate of registration for more than five (5) years may have the certificate of registration reinstated by satisfying the requirements for reinstatement under IC 25-1-8-6(d).

(d) If any registered architect desires to retire from the practice of architecture in Indiana, the architect may submit to the board the architect's verified statement of intention to withdraw from practice. The statement shall be entered upon the records of the board. During the period of the architect's retirement, the architect is not liable for any renewal or restoration fees.

(e) If any retired architect desires to return to the practice of architecture in Indiana, the retired architect must meet the following requirements:

(1) If the certificate of registration has been expired for not more than five (5) years, the retired architect must:

- (A) file with the board a verified statement indicating the architect's desire to return to the practice of architecture; and
- (B) pay a renewal fee equal to the fee set by the board to renew an unexpired registration under this chapter.

(2) If the certificate of registration has been expired for more than five (5) years, the retired architect must:

- (A) file with the board a verified statement indicating the architect's desire to return to the practice of architecture;
- (B) pay a renewal fee equal to the fee set by the board to renew an unexpired registration under this chapter; and
- (C) complete remediation and additional training established by the board based on the length of time the certificate of registration has been expired.

SECTION 31. IC 25-4-2-8.5, AS ADDED BY P.L.105-2008, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8.5. (a) Every registered landscape architect who continues in active practice shall biennially, on or before the date established by the licensing agency under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, renew the registered landscape architect's certificate of registration and pay the required renewal fee.

(b) A landscape architect registered in Indiana who has failed to renew the landscape architect's certificate of registration for a period of not more than five (5) years may have the certificate of registration reinstated by meeting the requirements of IC 25-1-8-6(c).

(c) A landscape architect registered in Indiana who has failed to renew the landscape architect's certificate of registration for a period of more than five (5) years may have the certificate of registration



1 reinstated by satisfying the requirements for reinstatement under
2 IC 25-1-8-6(d).

3 SECTION 32. IC 25-6.1-3-2, AS AMENDED BY P.L.158-2018,
4 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
5 JULY 1, 2026]: Sec. 2. (a) Every individual, before acting as an
6 auctioneer, must obtain a license from the commission.

7 (b) An applicant for a license must:

- 8 (1) be at least eighteen (18) years of age;
- 9 (2) have completed at least eighty (80) actual hours of auction
10 instruction from a course provider approved by the commission;
- 11 (3) not have a conviction for:
 - 12 (A) an act which would constitute a ground for disciplinary
13 sanction under IC 25-1-11; or
 - 14 (B) a felony that has a direct bearing on the applicant's ability
15 to practice competently.

16 (c) Auction instruction required under subsection (b) must provide
17 the applicant with knowledge of all of the following:

- 18 (1) The value of real estate and of various goods commonly sold
19 at an auction.
- 20 (2) Bid calling.
- 21 (3) Sale preparation, sale advertising, and sale summary.
- 22 (4) Mathematics.
- 23 (5) The provisions of this article and the commission's rules.
- 24 (6) Any other subject matter approved by the commission.

25 (d) For purposes of subsection (b)(2), the commission may approve
26 online auction instruction that complies with subsection (c) and is
27 offered by a course provider approved by the commission.

28 (e) An individual seeking an initial license as an auctioneer under
29 this article shall file with the commission a completed application on
30 the form prescribed by the commission. When filing an application for
31 an auctioneer license, each individual shall pay a nonrefundable
32 examination fee established by the commission under IC 25-1-8-2.

33 (f) When applying for a renewal of an auctioneer license, each
34 individual shall do the following:

- 35 (1) Apply in a manner required by the commission, including
36 certification by the applicant that the applicant has complied with
37 the requirements of IC 25-6.1-9-8, unless the commission has
38 granted the applicant a waiver under IC 25-6.1-9-9.
- 39 (2) Pay the renewal fee established by the commission under
40 IC 25-1-8-2.

41 (g) Upon the receipt of a completed application for an initial or a
42 renewal license, the commission shall examine the application and may



1 verify the information contained therein.

2 (h) An applicant who is seeking an initial license must pass an
3 examination approved by the commission that covers subjects and
4 topics of knowledge required to practice as an auctioneer. The
5 commission shall hold examinations as the commission may prescribe.

6 (i) The commission shall issue an auctioneer's license, in such form
7 as it may prescribe, to each individual who meets all of the
8 requirements for licensing and pays the appropriate fees.

9 (j) Auctioneer licenses shall be issued for a term of four (4) years.
10 Subject to IC 25-1-2-6(e), a license expires at midnight on the date
11 established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and
12 every fourth year thereafter, unless renewed before that date. If the
13 license has expired, it may be reinstated not later than four (4) years
14 after the date it expired if the license holder meets the requirements of
15 IC 25-1-8-6(c).

16 (k) If a license has expired for a period of more than four (4) years,
17 the holder of the license may have the license reinstated by satisfying
18 the requirements for reinstatement under IC 25-1-8-6(d).

19 (l) The commission may waive the requirement that a nonresident
20 applicant pass an examination and that the nonresident submit written
21 statements by two (2) individuals, if the nonresident applicant:

22 (1) is licensed to act as an auctioneer in the state of the applicant's
23 domicile;

24 (2) submits with the application a duly certified letter of
25 certification issued by the licensing board of the applicant's
26 domiciliary state;

27 (3) is a resident of a state whose licensing requirements are
28 substantially equal to the requirements of Indiana;

29 (4) is a resident of a state that grants the same privileges to the
30 licensees of Indiana; and

31 (5) includes with the application an irrevocable consent that
32 actions may be commenced against the applicant. The consent
33 shall stipulate that service of process or pleadings on the
34 commission shall be taken and held in all courts as valid and
35 binding as if service of process had been made upon the applicant
36 personally within this state. If any process or pleading mentioned
37 in this subsection is served upon the commission, it shall be by
38 duplicate copies. One (1) of the duplicate copies shall be filed in
39 the office of the commission and one (1) shall be immediately
40 forwarded by the commission by registered or certified mail to the
41 applicant against whom the process or pleadings are directed.

42 (m) The commission may enter into a reciprocal agreement with



1 another state concerning nonresident applicants.

2 SECTION 33. IC 25-6.1-3-4, AS AMENDED BY P.L.86-2018,
3 SECTION 198, IS AMENDED TO READ AS FOLLOWS
4 [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Every person other than:

5 (1) an individual who is a licensed auctioneer; or

6 (2) an individual who has a licensed auction house (until July 1,
7 2014);

8 who is seeking to operate as an auction company must obtain a license
9 from the commission. Notwithstanding the fact that an individual who
10 is a licensed auctioneer or (until July 1, 2014) an individual who has a
11 licensed auction house also has an interest in an organization, every
12 organization which seeks to operate an auction company must obtain
13 a license for that auction company.

14 (b) An individual who holds an unexpired auction house license
15 under IC 25-6.1-3-3 (before its repeal) may file with the commission
16 a completed application for an auction company license on the form
17 prescribed by the commission in rules adopted by the commission
18 under IC 4-22-2. Upon the receipt of a completed application for an
19 auction company license under this chapter, the commission shall
20 examine the application and may verify the information contained in
21 the application. Upon a determination by the commission that an
22 application is complete and verified, the commission shall issue an
23 auction company license, in a form it prescribes, to the applicant for a
24 term equal to the remaining term of the unexpired auction house
25 license. If an individual described in this subsection files a completed
26 application for an auction company license before June 1, 2014, the
27 commission shall determine whether the application is complete and
28 verified before June 15, 2014. If the commission determines that the
29 application is complete and verified, the commission shall issue the
30 individual an auction company license before July 1, 2014.

31 (c) Every such person shall file with the commission a complete
32 application on the form prescribed by the commission. Each
33 application shall be accompanied by the license fee prescribed by
34 section 5 of this chapter and a surcharge described in IC 25-6.1-8-2.

35 (d) Upon the receipt of a completed application for an initial or
36 renewal license, the commission shall examine the application and may
37 verify the information contained therein.

38 (e) Upon a determination by the commission that an application is
39 complete and duly verified, the commission shall issue an auction
40 company license, in such form as it may prescribe, to the applicant.

41 (f) Auction company licenses shall expire on a date established by
42 the licensing agency under ~~IC 25-6-4~~, **IC 25-1-5-4**, and every fourth



1 year thereafter.

2 (g) If the holder of an auction company license does not renew the
3 license by the date established by the licensing agency, the license
4 expires and becomes invalid without any action taken by the
5 commission.

6 (h) The holder of an auction company license that has been expired
7 for not more than four (4) years may have the license reinstated by
8 meeting the requirements under IC 25-1-8-6(c).

9 (i) The holder of an auction company license that has been expired
10 for more than four (4) years may have the license reinstated by
11 satisfying the requirements for reinstatement under IC 25-1-8-6(d).

12 (j) Any individual who wishes to operate an auction company, and
13 who is exempt under subsection (a) from obtaining an auction company
14 license, shall, not more than thirty (30) days before the date on which
15 the individual begins to operate an auction company, notify the
16 commission, in a writing signed by the individual, that the individual
17 is operating as an auction company or as more than one (1) auction
18 company. The individual shall specify in such written notification the
19 trade or business name, and the address of the principal place of
20 business, of each auction company which the individual operates.
21 Whenever an individual to whom this subsection applies shall
22 discontinue the operation of an auction company operated by the
23 individual, or shall change its address or trade or business name, the
24 individual shall promptly notify the secretary of the commission of
25 such discontinuance or change, in a writing signed by the individual.

26 SECTION 34. IC 25-8-3-5, AS AMENDED BY P.L.249-2019,
27 SECTION 57, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
28 JULY 1, 2026]: Sec. 5. (a) Each of the members of the board must
29 reside in Indiana.

30 (b) Subject to IC 25-1-6.5-3, the members of the board must meet
31 the following qualifications:

- 32 (1) Two (2) of the members must:
- 33 (A) possess a current cosmetologist license; and
 - 34 (B) have practiced cosmetology in Indiana continuously for at
 - 35 least five (5) years immediately before appointment.
- 36 (2) Two (2) of the members of the board must:
- 37 (A) possess a current barber license; and
 - 38 (B) have practiced barbering in Indiana continuously for at
 - 39 least five (5) years immediately before appointment.
- 40 (3) One (1) of the members must be an owner or operator of a
41 beauty culture school. ~~However, the member may not be a~~
42 ~~licensed barber or cosmetologist.~~



(4) One (1) of the members must be licensed as an electrologist, an esthetician, or a manicurist.

(5) One (1) of the members must not have any association with the practice of beauty culture, except as a consumer.

SECTION 35. IC 25-8-4-17, AS AMENDED BY P.L.177-2015, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), and except for an instructor license issued under subsection (c) or IC 25-8-6-1, a license issued under this article expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires four (4) years after the initial expiration date.

(b) A license issued to an instructor under IC 25-8-6-1 expires at the time that the instructor's practitioner license expires. The board shall renew an instructor's license under this subsection concurrently with the instructor's practitioner license.

(c) Subject to IC 25-1-2-6(e), initial provisional licenses are valid for a length of time determined by the board, but not to exceed two (2) years.

SECTION 36. IC 25-8-15.4-9, AS AMENDED BY P.L.177-2015, SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) Subject to IC 25-1-2-6(e), a license issued under this chapter expires every fourth year on a date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) The board shall renew a license issued under this chapter if the person that operates the facility pays the fee for renewal established by the board under IC 25-1-8-2 on or before the date established by the licensing agency.

(c) If the holder of a license does not renew the license on or before the renewal date established by the licensing agency, the license expires and becomes invalid without any action by the board.

SECTION 37. IC 25-15-6-1, AS AMENDED BY P.L.177-2015, SECTION 37, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e) and except as provided in subsection (b), a license issued under this article expires on the date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) A funeral director intern license expires two (2) years after it is issued by the board.

SECTION 38. IC 25-20-1-1.5, AS AMENDED BY P.L.249-2019, SECTION 87, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.5. (a) Subject to IC 25-1-6.5-3, there is established the committee of hearing aid dealer examiners which



consists of five (5) members all appointed by the governor to a term under IC 25-1-6.5. ~~Three (3)~~ **Four (4)** members must be hearing aid dealers licensed under this chapter, who are residents of this state and who have been practicing as hearing aid dealers for at least one (1) year prior to their appointment. ~~One (1) member must be an otolaryngologist in this state, who is a resident of this state and who has been engaged in the practice of otolaryngology for at least one (1) year prior to appointment to the committee.~~ One (1) member must be a resident of this state who is in no way associated with the business of hearing aid dealers, audiology, or speech-language pathology other than as a consumer. Whenever a vacancy occurs on the committee, the governor shall appoint a successor under IC 25-1-6.5.

(b) Three (3) members present constitute a quorum.

(c) The members serve without compensation, except that each member is entitled to the salary per diem as provided by IC 4-10-11-2.1 and to reimbursement for travel, lodging, meals, and other expenses as provided in the state travel policies and procedures established by the department of administration and approved by the state budget agency.

(d) A member may be removed under IC 25-1-6.5-4.

SECTION 39. IC 25-20.2-3-8, AS AMENDED BY P.L.84-2016, SECTION 106, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The board shall:

- (1) administer and enforce this article;
- (2) adopt rules under IC 4-22-2 that are reasonably necessary or appropriate for the administration and enforcement of this article;
- (3) prescribe the requirements for and the form of licenses, applications, and other documents that are required by this article;
- (4) grant, deny, suspend, and revoke approval of examinations and courses of study;
- (5) issue, deny, suspend, and revoke licenses in accordance with this article;
- (6) in accordance with IC 25-1-7, investigate complaints concerning licensees or persons the board has reason to believe should be licensees, including complaints concerning failure to comply with this article or rules adopted under this article, and, when appropriate, take action under IC 25-20.2-8;
- (7) bring actions in the name of the state in an appropriate circuit court, superior court, or probate court in order to enforce compliance with this article or rules adopted under this article;
- (8) establish fees in accordance with IC 25-1-8;
- (9) inspect the records of a licensee in accordance with rules adopted by the board;



(10) conduct or designate a member or other representative to conduct public hearings on any matter for which a hearing is required under this article and exercise all powers granted under IC 4-21.5;

(11) adopt a seal containing the words "Indiana Home Inspectors Licensing Board" and, through the board's secretary, certify copies and authenticate all acts of the board;

(12) in accordance with ~~IC 25-1-6~~ **IC 25-1-5**:

(A) use counsel, consultants, and other persons;

(B) enter into contracts; and

(C) authorize expenditures;

that are reasonably necessary or appropriate to administer and enforce this article and rules adopted under this article;

(13) establish continuing education requirements for licensed home inspectors in accordance with IC 25-1-4;

(14) maintain the board's office, files, records, and property in the city of Indianapolis; and

(15) exercise all other powers specifically conferred on the board by this article.

SECTION 40. IC 25-20.2-6-1, AS AMENDED BY P.L.177-2015, SECTION 42, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Subject to IC 25-1-2-6(e), a license for a home inspector issued under this article expires on a date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and shall be renewed biennially upon payment of the required renewal fees.

SECTION 41. IC 25-21.5-1-9 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. "Secretary" has the meaning under ~~IC 25-1-6-5(e)~~ **IC 25-1-5-5(c)**.

SECTION 42. IC 25-21.5-8-1, AS AMENDED BY P.L.177-2015, SECTION 45, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e), a certificate of registration expires biennially on the date established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(b) An individual may renew a certificate of registration by paying a renewal fee on or before the expiration date established by the licensing agency.

(c) If an individual fails to pay a renewal fee on or before the expiration date of a certificate of registration, the certificate of registration becomes invalid without any action of the board.

(d) A certificate of registration may be reinstated by the board not later than three (3) years after its expiration if the applicant for reinstatement meets the requirements for reinstatement under



1 IC 25-1-8-6(c).

2 (e) If a certificate of registration has been expired for more than
3 three (3) years, the certificate of registration may be reinstated by the
4 board if the holder meets the requirements for reinstatement under
5 IC 25-1-8-6(d).

6 SECTION 43. IC 25-21.8-6-1, AS AMENDED BY P.L.267-2017,
7 SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
8 JULY 1, 2026]: Sec. 1. (a) Subject to IC 25-1-2-6(e), a license issued
9 by the board is valid for four (4) years.

10 (b) A license expires:

11 (1) at midnight on the date established by the licensing agency
12 under ~~IC 25-1-6-4~~, **IC 25-1-5-4**, subject to IC 25-1-2-6(e); and

13 (2) every four (4) years thereafter, unless renewed before that
14 date.

15 SECTION 44. IC 25-23.7-2-8 IS AMENDED TO READ AS
16 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. "Secretary" has the
17 meaning set forth in ~~IC 25-1-6-5(e)~~. **IC 25-1-5-5(c)**.

18 SECTION 45. IC 25-23.7-6-1, AS AMENDED BY P.L.177-2015,
19 SECTION 60, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
20 JULY 1, 2026]: Sec. 1. Notwithstanding IC 25-1-2, but subject to
21 IC 25-1-2-6(e), the holder of a license issued under IC 25-23.7-5 must
22 renew the license and pay the required renewal fee every four (4) years
23 after it is issued on or before the date established by the Indiana
24 professional licensing agency under ~~IC 25-1-6-4~~. **IC 25-1-5-4**.

25 SECTION 46. IC 25-28.5-1-8, AS AMENDED BY P.L.2-2005,
26 SECTION 67, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
27 JULY 1, 2026]: Sec. 8. The commission may:

28 (1) Adopt and promulgate rules and regulations for its guidance
29 and for the regulation of its business and procedure consistent
30 with the provisions of this chapter and in the manner provided in
31 IC 4-22-2.

32 (2) Enter into such other contracts and authorize expenditures as
33 its duties require, subject to the provisions of this chapter and
34 ~~IC 25-1-6~~. **IC 25-1-5**.

35 (3) Do all things necessary for carrying into effect the provisions
36 of this chapter.

37 SECTION 47. IC 25-28.5-1-22, AS AMENDED BY P.L.177-2015,
38 SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
39 JULY 1, 2026]: Sec. 22. (a) Subject to IC 25-1-2-6(e), every license or
40 certificate of registration issued under this chapter expires on a date
41 established by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and
42 shall be renewed biennially thereafter upon payment of the required



renewal fees.

(b) Applications for renewal shall be filed with the commission in the form and manner provided by the commission. The application shall be accompanied by the required renewal fee. The commission, upon the receipt of the application for renewal and the required renewal fee, shall issue to the renewal applicant a license or certificate of registration in the category said applicant has previously held. Subject to IC 25-1-2-6(e), unless renewed, a license issued by the commission expires on the date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4**.

(c) Subject to IC 25-1-2-6(e), a license or certificate of registration lapses without any action by the commission if an application for renewal has not been filed and the required fee has not been paid by the established biennial renewal date.

(d) If a license or certificate of registration has been expired for not more than three (3) years, the license or certificate of registration may be reinstated by the commission if the holder of the license or certificate of registration meets the requirements of IC 25-1-8-6(c).

(e) If a license or certificate of registration has been expired for more than three (3) years, the license or certificate of registration may be reinstated by the commission if the holder of the license or certificate of registration meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 48. IC 25-30-1-16, AS AMENDED BY P.L.177-2015, SECTION 68, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) Subject to IC 25-1-2-6(e), unless renewed, a license issued under this chapter expires on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires every four (4) years after the initial expiration date. An applicant for renewal shall pay the renewal fee established by the board under IC 25-1-8-2 on or before the renewal date specified by the licensing agency.

(b) Subject to IC 25-1-2-6(e), if the holder of a license does not renew the license by the date specified by the licensing agency, the license expires and becomes invalid without any action taken by the board.

(c) If a license has been expired for not more than three (3) years, the license may be reinstated by the board if the holder of the license meets the requirements under IC 25-1-8-6(c).

(d) If a license has been expired for more than three (3) years, the license may be reinstated by the board if the holder of the license meets the requirements for reinstatement under IC 25-1-8-6(d).

SECTION 49. IC 25-30-1.3-17, AS AMENDED BY P.L.177-2015,



1 SECTION 69, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), unless renewed,
3 a license issued under this chapter expires on a date specified by the
4 licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires every four
5 (4) years after the initial expiration date. An applicant for renewal shall
6 pay the renewal fee established by the board under IC 25-1-8-2 on or
7 before the renewal date specified by the licensing agency.

8 (b) Subject to IC 25-1-2-6(e), if the holder of a license does not
9 renew the license by the date specified by the licensing agency, the
10 license expires and becomes invalid without any action taken by the
11 board.

12 (c) If a license has been expired for not more than three (3) years,
13 the license may be reinstated if the holder of the license meets the
14 requirements under IC 25-1-8-6(c).

15 (d) If a license has been expired for more than three (3) years, the
16 license may be reinstated by the board if the holder of the license meets
17 the requirements for reinstatement under IC 25-1-8-6(d).

18 SECTION 50. IC 25-31-1-17, AS AMENDED BY P.L.177-2015,
19 SECTION 70, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
20 JULY 1, 2026]: Sec. 17. (a) Subject to IC 25-1-2-6(e), unless renewed,
21 a certificate issued under this chapter expires on a date specified by the
22 licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires biennially
23 after the initial expiration date. An applicant for renewal shall submit
24 an application in the manner prescribed by the board and pay the
25 renewal fee established by the board under IC 25-1-8-2 on or before the
26 renewal date specified by the licensing agency.

27 (b) Subject to IC 25-1-2-6(e), if the holder of a certificate does not
28 renew the certificate by the date specified by the licensing agency, the
29 certificate expires and becomes invalid without the board taking any
30 action.

31 (c) The failure on the part of a registrant to renew a certificate does
32 not deprive the registrant of the right of renewal.

33 (d) If a certificate has been expired for not more than three (3) years,
34 the certificate may be reinstated by the board if the holder of the
35 certificate meets the requirements for reinstatement under
36 IC 25-1-8-6(c).

37 (e) If a certificate has been expired for more than three (3) years, the
38 certificate may be reinstated by the board if the holder of the certificate
39 meets the requirements for reinstatement under IC 25-1-8-6(d).

40 SECTION 51. IC 25-34.1-2-5, AS AMENDED BY P.L.93-2024,
41 SECTION 191, IS AMENDED TO READ AS FOLLOWS
42 [EFFECTIVE JULY 1, 2026]: Sec. 5. The commission may:



- 1 (1) administer and enforce the provisions of this article;
- 2 (2) adopt rules in accordance with IC 4-22-2 and prescribe forms
- 3 for licenses, applications, and other documents which are
- 4 necessary or appropriate for the administration and enforcement
- 5 of this article;
- 6 (3) issue, deny, suspend, and revoke licenses in accordance with
- 7 this article, which licenses shall remain the property of the
- 8 commission;
- 9 (4) subject to IC 25-1-7, investigate complaints concerning
- 10 licensees or persons the commission has reason to believe should
- 11 be licensees, including complaints respecting failure to comply
- 12 with this article or the rules, and, when appropriate, take action
- 13 pursuant to IC 25-34.1-6;
- 14 (5) bring actions, in the name of the state of Indiana, in an
- 15 appropriate circuit court, superior court, or probate court in order
- 16 to enforce compliance with this article or the rules;
- 17 (6) inspect the records of a licensee in accordance with rules and
- 18 standards prescribed by the commission;
- 19 (7) conduct, or designate a member or other representative to
- 20 conduct, public hearings on any matter for which a hearing is
- 21 required under this article and exercise all powers granted in
- 22 IC 4-21.5;
- 23 (8) adopt a seal containing the words "Indiana Real Estate
- 24 Commission" and, through its executive director, certify copies
- 25 and authenticate all acts of the commission;
- 26 (9) utilize counsel, consultants, and other persons who are
- 27 necessary or appropriate to administer and enforce this article and
- 28 the rules;
- 29 (10) enter into contracts and authorize expenditures that are
- 30 necessary or appropriate, subject to ~~IC 25-1-6~~, **IC 25-1-5**, to
- 31 administer and enforce this article and the rules;
- 32 (11) maintain the commission's office, files, records, and property
- 33 in the city of Indianapolis;
- 34 (12) grant, deny, suspend, and revoke approval of examinations
- 35 and courses of study as provided in IC 25-34.1-5;
- 36 (13) provide for the filing and approval of surety bonds which are
- 37 required by IC 25-34.1-5;
- 38 (14) adopt rules in accordance with IC 4-22-2 necessary for the
- 39 administration of the investigative fund established under
- 40 IC 25-34.1-8-7.5;
- 41 (15) adopt rules under IC 4-22-2 to adopt any or all parts of
- 42 Uniform Standards of Professional Appraisal Practice (USPAP),



including the comments to the USPAP, as published by the Appraisal Standards Board of the Appraisal Foundation, under the authority of Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (12 U.S.C. 3331-3351);
 (16) exercise other specific powers conferred upon the commission by this article; and
 (17) adopt rules under IC 4-22-2 governing education, including prelicensing, postlicensing, and continuing education.

SECTION 52. IC 25-34.1-3-4.1, AS AMENDED BY P.L.32-2020, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.1. (a) To obtain a broker license, an individual must:

(1) be at least eighteen (18) years of age before applying for a license and must not have a conviction for:

(A) an act that would constitute a ground for disciplinary sanction under IC 25-1-11;

(B) a crime that has a direct bearing on the individual's ability to practice competently; or

(C) a crime that indicates the individual has the propensity to endanger the public;

(2) have a high school diploma or a general educational development (GED) diploma under IC 20-20-6 (before its repeal) or IC 22-4.1-18;

(3) have successfully completed an approved broker course of study as prescribed in IC 25-34.1-5-5;

(4) apply for a license by submitting the application fee prescribed by the commission and an application specifying:

(A) the name, address, and age of the applicant;

(B) the broker company with which the applicant intends to associate;

(C) the address of the broker company;

(D) proof of compliance with subdivisions (2) and (3); and

(E) any other information the commission requires;

(5) pass a written examination prepared and administered by the commission or its duly appointed agent; and

(6) within one (1) year after passing the commission examination, submit the license fee established by the commission under IC 25-1-8-2. If an individual applicant fails to file a timely license fee, the commission shall void the application and may not issue a license to that applicant unless that applicant again complies with the requirements of subdivisions (4) and (5) and this subdivision.



(b) To obtain a broker license, a partnership must:

- (1) have as partners only individuals who are licensed brokers;
- (2) have at least one (1) partner who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
- (3) cause each employee of the partnership who acts as a broker to be licensed; and
- (4) submit the license fee established by the commission under IC 25-1-8-2 and an application setting forth the name and residence address of each partner and the information prescribed in subsection (a)(4).

(c) To obtain a broker license, a corporation must:

- (1) have a licensed broker who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
- (2) cause each employee of the corporation who acts as a broker to be licensed; and
- (3) submit the license fee established by the commission under IC 25-1-8-2, an application setting forth the name and residence address of each officer and the information prescribed in subsection (a)(4), a copy of the certificate of incorporation, and a certificate of good standing of the corporation issued by the secretary of state.

(d) To obtain a broker license, a limited liability company must:

- (1) if a member-managed limited liability company:
 - (A) have as members only individuals who are licensed brokers; and
 - (B) have at least one (1) member who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
- (2) if a manager-managed limited liability company, have a licensed broker who qualifies as a managing broker under IC 25-34.1-4-0.5 and IC 25-34.1-4-3;
- (3) cause each employee of the limited liability company who acts as a broker to be licensed; and
- (4) submit the license fee established by the commission under IC 25-1-8-2 and an application setting forth the information prescribed in subsection (a)(4), together with:
 - (A) if a member-managed company, the name and residence address of each member; or
 - (B) if a manager-managed company, the name and residence address of each manager, or of each officer if the company has officers.

(e) Licenses granted to partnerships, corporations, and limited liability companies are issued, expire, are renewed, and are effective on



the same terms as licenses granted to individual brokers, except as provided in subsection (h), and except that expiration or revocation of the license of:

- (1) any partner in a partnership or all individuals in a corporation satisfying subsection (c)(1); or
- (2) a member in a member-managed limited liability company or all individuals in a manager-managed limited liability company satisfying subsection (d)(2);

terminates the license of that partnership, corporation, or limited liability company.

(f) Upon the applicant's compliance with the requirements of subsection (a), (b), or (c), the commission shall issue the applicant a broker license and an identification card which certifies the issuance of the license and indicates the expiration date of the license. The license shall be displayed at the broker's place of business. For at least two (2) years after the issuance of a license, the individual cannot be a managing broker. An individual who applies for a broker's license after June 30, 2014, must, during the first two (2) years after the license is issued, take and pass at least thirty (30) hours of postlicensing education focused on the practical matters of real estate transactions instead of the continuing education requirements under IC 25-34.1-9.

(g) Subject to IC 25-1-2-6(e), unless the license is renewed, a broker license expires, for individuals, on a date specified by the licensing agency under ~~IC 25-1-6-4~~ **IC 25-1-5-4** and expires three (3) years after the initial expiration date. An applicant for renewal shall submit an application in the manner prescribed by the commission and pay the renewal fee established by the commission under IC 25-1-8-2 on or before the renewal date specified by the licensing agency. If the holder of a license does not renew the license by the date specified by the licensing agency, the license expires and becomes invalid without the commission taking any action.

(h) Subject to IC 25-1-2-6(e), if the holder of a license under this section fails to renew the license on or before the date specified by the licensing agency, the license may be reinstated by the commission if the holder of the license, not later than three (3) years after the expiration of the license, meets the requirements of IC 25-1-8-6(c).

(i) If a license under this section has been expired for more than three (3) years, the license may be reinstated by the commission if the holder meets the requirements for reinstatement under IC 25-1-8-6(d).

(j) A partnership, corporation, or limited liability company may be only a broker company, except as authorized in IC 23-1.5 and subject to section 4.5 of this chapter. An individual broker who associates with



1 a broker company shall immediately notify the commission:

2 (1) of the name and business address of the broker company with
3 which the individual broker is associating; and

4 (2) of any changes of the broker company with which the
5 individual broker is associated that may occur.

6 Upon receiving notice under subdivision (1) or (2), the commission
7 shall change the address of the individual broker on its records to that
8 of the broker company.

9 SECTION 53. IC 25-34.1-11-11, AS ADDED BY P.L.77-2010,
10 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
11 JULY 1, 2026]: Sec. 11. (a) A person may not own an interest in an
12 appraisal management company if the person has had the person's
13 license or certificate to act as a real estate appraiser in Indiana or any
14 other state revoked, **refused, denied, canceled, or surrendered in lieu**
15 **of revocation, for a substantive cause, as determined by the**
16 **appropriate state appraiser certifying and licensing agency,** and the
17 license or certificate has not been reinstated.

18 (b) An appraisal management company may only hire an
19 independent contractor to perform an appraisal who:

20 (1) holds a license or certificate under IC 25-34.1-3-8 or a license
21 as a real estate broker under IC 25-34.1; and

22 (2) is in good standing.

23 (c) An appraisal management company may not corrupt or
24 improperly influence a real estate appraiser in violation of
25 IC 24-5-23.5-7.

26 SECTION 54. IC 25-34.5-2-2, AS AMENDED BY P.L.249-2019,
27 SECTION 132, IS AMENDED TO READ AS FOLLOWS
28 [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Subject to IC 25-1-6.5-3, the
29 committee consists of five (5) members to be appointed by the
30 governor as follows:

31 (1) ~~At least two~~ **(2) Four (4)** practitioners.

32 ~~(2) At least one (1) physician licensed under IC 25-22.5 who is~~
33 ~~familiar with the practice of respiratory care.~~

34 ~~(3) (2) At least One (1) member who:~~

35 (A) is a resident of Indiana; and

36 (B) is not associated with the practice of respiratory care in
37 any way, other than as a consumer.

38 (b) Each practitioner appointed to the committee must:

39 (1) be a practitioner meeting the requirements of this article;

40 (2) have had not less than three (3) years experience in the actual
41 practice of respiratory care immediately preceding appointment;
42 and



1 (3) be a resident of Indiana and actively engaged in Indiana in the
2 practice of respiratory care while serving as a member of the
3 committee.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Employment, Labor and Pensions, to which was referred House Bill 1230, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 19, delete lines 31 through 42.

Page 20, delete lines 1 through 34.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1230 as introduced.)

VANNATTER

Committee Vote: yeas 13, nays 0.

